

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN BANGLADESH

Complete Community Opposition How-To

This guide uses the Bangladeshi terms and bodies you'll actually run into — environmental clearance and the EIA, the Department of Environment, the courts and writ petitions, the National Human Rights Commission, and the pressure that can be brought on a project's foreign backers — and explains each in plain words the first time. Civic space is constrained and, in land conflicts, dangerous, so this guide puts your safety first.

INTRODUCTION & FRAMEWORK

Phulbari, in Dinajpur, sits in the fertile northwest that Bangladeshis call the country's rice bowl. In the 2000s a British-listed company, **GCM Resources** (through its subsidiary **Asia Energy**), planned to dig an enormous **open-pit coal mine** there — a 572-million-tonne pit that would have destroyed prime farmland and displaced tens of thousands of people. The community said no. On **26 August 2006**, **tens of thousands marched** — a crowd estimated at 50,000 to 80,000, organised by the **National Committee to Protect Oil, Gas, Mineral Resources, Power and Ports**. The paramilitary Bangladesh Rifles opened fire, killing **three young protesters — Tarikul, Al Amin, and Salekin** — and injuring hundreds. The country was convulsed; a national strike shut it down for days. And out of that grief and fury, the government signed the **Phulbari Agreement** with the National Committee: expel Asia Energy, cancel the project, and **ban open-pit coal mining**. The mine has never been built. Nearly two decades on, "Phulbari Day" is marked every year.

The community at Phulbari, organised by the National Committee to Protect Oil, Gas, Mineral Resources, Power and Ports, drew on tools available to communities across Bangladesh — constrained tools, in a dangerous setting. A major project needs an **environmental clearance** and an **EIA** before it can proceed. The courts have a notable tradition of **public interest litigation**. A **National Human Rights Commission** can be petitioned. And — distinctively, as Phulbari showed — many big schemes depend on companies listed or financed abroad, which opens **pressure on a project's foreign backers**. But these tools have grave limits, and this guide states them plainly, because the cost at Phulbari must never be forgotten. Three young people — Tarikul, Al Amin, and Salekin — were killed to win that fight; a local leader was tortured the next year; and the fight is not over, because **GCM is still listed in London and still lobbies to revive the mine**, so the win must be defended. Bangladesh **prioritises development and investment, enforcement is weak**, and **civic space is constrained** — and in land and resource conflicts the state has used lethal force and torture against protesters. The safest and most effective work is usually **mass but disciplined nonviolent mobilisation** paired with **technical, legal, and financial pressure**, not confrontation that invites deadly repression. That is the shape of resistance in Bangladesh: possible, powerful, and dangerous.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals and dependencies, and a chain breaks at its weakest link. A large Bangladeshi project needs its **environmental clearance** (resting on an EIA); it can be challenged in the **courts** by public interest litigation; where it displaces people or threatens rights, it engages the **Human Rights Commission**; and where it depends on a **foreign-listed or foreign-financed company**, that dependency is a pressure point. Every one of those is a link you can grab. **Find the one**

closest to your hand and pull — and protect your people above all.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation — safety first:

- **Mass, disciplined, nonviolent mobilisation is the proven lever** — Phulbari was stopped by it, and it forced a policy.
- **If the EIA is weak or clearance was skipped, the courts and public interest litigation are real** — Bangladesh has a strong PIL tradition.
- **If a foreign-listed or foreign-financed company is behind it, that's a distinctive pressure point** — financiers pulled out of GCM after a global campaign.
- **But the danger is real** — the state has killed and tortured protesters, so keep mobilisation disciplined and nonviolent, and protect the vulnerable.

Read the whole guide once before you move. Two habits run through it: **use the levers that work here** — mass nonviolent mobilisation, the EIA and the courts, the Human Rights Commission, and foreign-backer pressure — and **combine them**, safely: the documents, the mobilisation, the litigation, the financial pressure, the press. That combination, kept disciplined, is what stopped Phulbari.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core environmental decision is the **environmental clearance certificate**, issued by the **Department of Environment (DoE)** on the basis of an **EIA** for the most impactful projects, before a project can lawfully proceed. Sector authorities grant the licences. The **courts** review decisions and hear public interest litigation. And for a foreign-backed project, decisions made **abroad** — by a stock exchange, a financier, an insurer — can be decisive. Know which decision you can reach — and remember that a project's foreign dependency is often its softest point.

How a Project Moves — and Where You Jump In

The EIA and clearance. The developer prepares an **EIA**; the DoE issues (or refuses) the **environmental clearance**. *Your opening* — and it arms every later step: obtain the EIA, expose its flaws, and press the DoE.

The licence. Sector approval follows clearance. *Your opening*: a licence resting on a defective clearance can be challenged.

Construction and displacement. *Your opening*: the courts (public interest litigation), the Human Rights Commission, and — the Phulbari lever — mass nonviolent mobilisation.

The foreign backer, throughout. *Your opening*: pressure on the company's stock exchange, financiers, and insurers abroad.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them — and where they're listed or financed** — this is often the decisive fact (GCM's London listing became the campaign's target). **What it still needs** — the

clearance not final, the licence not granted, financing not closed: whatever's missing is the soft spot. **Who's paying and insuring** — the banks, funds, and insurers who can be pressed to walk away, as RBS, Barclays, and the ADB did over GCM.

Who's Supposed to Be Watching

Each is an ally or an arena — used carefully. The **Department of Environment** issues clearance and can be pressed. The **courts** hear public interest litigation. The **National Human Rights Commission** takes rights complaints. **International networks, financiers, and stock-exchange campaigns** reach a foreign backer where domestic remedies stall. And — with discipline given the danger — Bangladesh's **strong tradition of mass mobilisation, its committees and movements (like the National Committee), and its press** are the forces that reach furthest — the combination that stopped Phulbari.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether mobilisation is mass and disciplined, whether the EIA was skipped or defective, whether a foreign backer can be pressured, and — always — how much danger resistance carries.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents (safely)	5–10%	weeks	low	The base for everything else
Exposing a defective/skipped EIA	15–35%	during clearance	low	Clearance delayed or refused
Public interest litigation (courts)	25–50%	1–3 yr	low–mod	Clearance/decision set aside
National Human Rights Commission	15–35%	months–yr	low	Findings; pressure; some protection
Foreign-backer / financier pressure	25–50%	months–yr	low	Financing or listing withdrawn
Mass disciplined nonviolent mobilisation	35–60%	days–yr	low but risky	Project shelved; policy won (Phulbari)
Everything together (mass mobilisation, foreign backer, world watching)	40–65%	1–3 yr	low–mod	Shelved, stalled, refused, defunded
Everything together (state-backed, closed space)	15–40%	years	low–mod, risky	Delayed, exposed — protect people first

The lever that moves the needle most is **mass disciplined nonviolent mobilisation** — it stopped Phulbari and won a policy — backed by the EIA and the courts, the Human Rights Commission, and **foreign-backer pressure**. Phulbari shows the ceiling (a mega-mine shelved, open-pit coal banned) and the honest, terrible cost (three lives) and limit (GCM still lobbies). So aim to win *and* defend, protect your people above all, and count a shelved project, a refused clearance, a defunded backer, delay, and a policy win as wins.

On cost and safety: mobilising, organising, and complaints are low-cost, and international networks bring the financial and legal campaigns. But the danger is grave — the state has killed and tortured protesters — so keep mobilisation strictly nonviolent and disciplined,

protect the vulnerable, and route risk through lawyers, the Human Rights Commission, and international allies.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this clearance, this foreign backer, this displacement — is strong. Answer five questions in writing, safely.

1. What is it, and who's behind it — and where are they listed or financed? Name the project, the company, its foreign parent, and — crucially — its stock exchange, financiers, and insurers.

2. Where is it, and what does it touch? Get the footprint and lay it over **farmland and the rice bowl**, water, homes and communities to be displaced, protected areas. **Mass displacement and prime farmland are powerful mobilising grounds**, so this map matters — Phulbari turned on the rice bowl and tens of thousands of homes.

3. What stage is it at, and what's the next deadline? Is the EIA in preparation? Has clearance issued (opening a court challenge)? These openings are time-bound.

4. What does it still need that it lacks? A clearance not final, a licence not granted, financing not closed — and, for a foreign backer, a listing and financiers who can be pressured. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring villages, farmers, national committees and movements, international networks. Phulbari united a region and the nation.

What this looks like in real life. A community learns a mine or plant is planned that will displace thousands and destroy farmland, backed by a foreign-listed company. The five questions yield: a foreign-listed company (and its financiers) behind it; a site on the rice bowl displacing homes (the mobilising ground); an EIA in process; a project still needing clearance and financing; and a coalition of villages, a national committee, and international allies. That's the Phulbari pattern — mobilise the region nonviolently, expose the EIA, and target the foreign backer.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — gathered **safely**. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the EIA, the environmental clearance and conditions, the licence, the resettlement and land-acquisition records, and the **foreign company's filings** (a listed company must disclose to its exchange and investors). Then read them hard for flaws — an understated impact, an ignored alternative, a clearance skipped or defective, a displacement scheme that fails the people it moves.

Layer two: the ground truth. Dated, located photographs and video of the site, the farmland, the homes, the water — baseline evidence most of all — and, carefully, the testimony of those to be displaced. In this dangerous context, weigh the risk to anyone documenting.

Layer three: the map of displacement and the foreign backer. Lay the project over the farmland and homes it would take, and map the company's foreign listing, financiers, and insurers — the pressure points. This feeds the mobilisation, the litigation, and the campaign abroad.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA, the clearance and conditions, the licence, the resettlement and land records** — from the DoE, the sector authority, and land offices; use lawful channels (8A).
- **The foreign company's filings** — from its stock exchange and investor disclosures.
- **Financiers and insurers** — the banks, funds, and insurers backing the project.
- **The displacement-and-backer map** — the homes and farmland at risk, and the company's listing and financiers.
- **Dated evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Phulbari was stopped by a mass, disciplined, unified movement. Build it **nonviolently and safely**. Four moves.

Start with a tight, trusted core. The residents most affected, the farmers and elders who know the land, a few tireless organisers, and respected local and traditional leaders — people you trust.

Build a broad, disciplined committee. Phulbari's power came from a broad National Committee uniting villages, unions, students, and national figures behind a disciplined nonviolent movement. Build the widest possible unified front, and keep it nonviolent — that discipline is both your strength and your protection.

Reach national and international allies — early. National committees and movements bring reach and legitimacy; international networks bring the financial and stock-exchange campaigns (the ones that made GCM's backers walk). Reach them early.

Bring in lawyers — and plan for safety. Public-interest lawyers who run PIL, and a serious safety plan. The state has killed and tortured protesters, so keep everything disciplined and nonviolent, protect the vulnerable, prepare for repression, and route danger through lawyers, the Human Rights Commission, and international attention.

Build to last, and defend the win. Bangladeshi fights run for years, and — the Phulbari lesson — a shelved project can be lobbied back. Build clear roles, a secure archive, careful communications, a way to decide together, a safety plan, and a plan to guard a victory the company may try to revive.

STEP 4: LEGAL CHALLENGES, THE EIA & FOREIGN PRESSURE

Law and financial pressure are real Bangladeshi levers — used alongside disciplined mobilisation.

Expose the EIA and Press the DoE First

Everything downstream is stronger if you obtained the **EIA**, exposed its flaws, and pressed the **Department of Environment** on the **environmental clearance**. A skipped or defective clearance is a real ground — and no lawful project without it.

Public Interest Litigation

Bangladesh has a notable tradition of **public interest litigation**: a **writ petition** in the High Court Division can challenge an unlawful clearance, a defective EIA, or a rights violation, and public-spirited petitioners

have standing to bring environmental cases. This is a genuine lever — use it with public-interest lawyers.

The National Human Rights Commission

Where a project displaces people or threatens rights — or where protesters face repression — the **National Human Rights Commission** can investigate and apply pressure. Bring it the displacement and any threats.

Foreign-Backer Pressure — the Distinctive Lever

Phulbari's most distinctive lever: many big Bangladeshi projects depend on **foreign-listed or foreign-financed companies**, and that dependency is a pressure point. A campaign targeting the company's **stock exchange listing**, its **financiers**, and its **insurers** can starve a project — after a global campaign, **RBS, Barclays, and the Asian Development Bank distanced themselves from GCM**, and activists press the London Stock Exchange to de-list it. Map the backers and campaign, with international allies.

The Honest Limits

Straight talk: mobilisation, the EIA and courts, the Human Rights Commission, and foreign pressure are real levers, but enforcement is weak, the courts are slow, civic space is constrained, and — the gravest limit — resistance can be lethal, and a win can be lobbied back. So use the strong tools — disciplined mass mobilisation, the EIA and PIL, the Human Rights Commission, foreign-backer pressure — protect your people above all, plan to defend a win, and count a shelved project, a refused clearance, a defunded backer, delay, and a policy win as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Displacement becomes a rallying cry. Not a technicality but *"they would evict tens of thousands of us and destroy the rice bowl — for a mine we never agreed to."*

A document becomes a defect. *"There is no valid clearance / the EIA ignored this impact — so the project cannot lawfully proceed."*

A foreign listing becomes a pressure point. *"This company sells shares in London on the promise of a project our nation rejected — its backers should walk away."*

The harm becomes an international story. *"Prime farmland, tens of thousands of homes, and lives already lost — for a foreign-listed company's coal pit."*

Match it to the venue: the objections to the DoE; the defect and the rights violation to the courts and the Human Rights Commission; the foreign listing to the stock exchange and financiers; the human story to the national and international press.

STEP 5: MEDIA STRATEGY

In Bangladesh, mass attention and international pressure together are powerful — Phulbari became a national cause and an international campaign — but the domestic space is constrained and dangerous, so handle media with care.

Lead with people and place, not procedure. Not "the clearance was defective" but "prime farmland, tens of thousands of homes, and lives already lost — for a foreign-listed company's coal pit." Use your strongest material: dated evidence, the map of displacement, and — carefully — human voices, without exposing anyone.

Work several audiences at once — reach the world and the backers. National press and the movement build the mass; international media and networks reach the company's financiers and stock exchange, and help protect people through global attention (as at Phulbari). Make it easy: captioned evidence, accurate summaries, a map, careful voices — and let the community decide what is said and by whom.

Two hard rules. Accuracy above all — one exaggeration can be used against you. And protect people above everything — weigh every public act for safety.

EMAILS & LETTERS

Make them your own; keep them factual, disciplined, and calm; keep copies safely; and protect anyone at risk.

8A — Request for the EIA and clearance (to the DoE).

Subject: Request for the EIA and environmental clearance — [project].

"We, residents of [place], request the EIA, the environmental clearance and its conditions, and the resettlement records for [project] at [location]. [Contact.]"

8B — Objection to the clearance.

Subject: Objection — environmental clearance for [project].

"We, residents of [place], object to [project]: [it lacks a valid clearance; the EIA understates the displacement and farmland loss]. We ask that clearance be refused. [Attach evidence.]"

8C — To a public-interest lawyer (PIL).

Subject: Public interest litigation — [project].

"Our community faces [project], which [displaces tens of thousands / destroys farmland] on [a defective clearance]. We've gathered [the EIA, the clearance, photographs] and ask you to bring a writ petition, as partners. [Contact and evidence summary.]"

8D — To the National Human Rights Commission.

Subject: Complaint — [project] at [location].

"We ask the Commission to investigate [project], which [would displace our community / destroy our livelihoods], and [any threats or repression against community members]. [Attach evidence.]"

8E — To the company's stock exchange / regulator.

Subject: Concerns regarding [company] and [project].

"We understand [company], listed on [exchange], promotes [project] at [location] — a project our community rejected and that lacks [lawful clearance / community consent]. We ask you to consider this against your listing standards. [Attach evidence.]"

8F — To a financier or insurer.

Subject: Environmental, rights, and legal risk in [project].

"We understand your institution may be [financing / insuring] [project] at [location], which [displaces thousands / lacks valid clearance] and faces sustained opposition. We ask you to weigh this against your own standards — as others have withdrawn from comparable projects. [Contact and evidence summary.]"

8G — Letter to the international press.

Subject: [Community] moves to protect [farmland / homes] from [project].

"For generations the people of [place] have farmed [the rice bowl] at [location]. Now [project] — a foreign-listed company's coal pit — threatens to evict tens of thousands. We can provide dated evidence, a map — and, carefully, interviews. [Contact.]"

8H — Rallying the community (nonviolently, safely).

Subject: We can protect our land — here's how, nonviolently.

"[Project] threatens [our farmland / homes]. At Phulbari, a disciplined nonviolent movement stopped an open-pit coal mine and won a national ban — at a cost we must never forget. Through disciplined nonviolent unity, the courts, the Human Rights Commission, and pressure on the foreign backer, we have a real chance — protecting one another above all. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order — nonviolently and safely:

1. **Nail down the project, its footprint, its displacement, and its foreign backer.** The backer is often the softest point.
2. **Build a broad, disciplined, nonviolent front (8H) — unity is your strength and your protection.**
3. **Request the EIA and clearance (8A), and expose any defect.**
4. **Photograph everything, with dates and places, safely.**
5. **Get a lawyer for public interest litigation (8C), and involve the Human Rights Commission (8D).**
6. **Target the foreign backer's exchange, financiers, and insurers with international allies (8E/8F), and go public carefully (8G).** Phulbari was stopped this way.

Even lean, those six use the proven lever of disciplined mobilisation, open the legal front, and hit the foreign backer — while keeping your people safe.

WHEN THE SYSTEM IS TILTED

Bangladesh's tools are real but constrained, and the field is heavily tilted, so plan for it — safety first.

When the state backs the project. Work through disciplined nonviolent mobilisation, the courts, the Human Rights Commission, and foreign-backer pressure — avoid anything that invites lethal repression, and aim for delay, a refused clearance, and a defunded backer as real wins.

When the space is dangerous. The state has killed and tortured protesters. Keep mobilisation strictly nonviolent and disciplined, protect the vulnerable, prepare for repression, and use international attention as a shield.

When a win is lobbied back. This is the Phulbari lesson: a shelved project can resurface — GCM still lobbies. Guard your win — keep the movement and the vigilance alive, and keep the foreign-backer campaign going.

When enforcement is weak. A policy or a court order can be ignored. Pair it with the movement, the press, and sustained foreign pressure.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Bangladesh has documented problems with the capture of large projects by political and business interests, so this matters — approach it with great care.

How to spot it. Clearances against the evidence; an EIA written for the proponent; consent manufactured or coerced; land steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **Anti-Corruption Commission** investigates graft. The **Comptroller and Auditor General** examines public money. The **National Human Rights Commission** takes rights complaints. The **courts** can set aside a tainted clearance. And Bangladesh's **press and international networks** have exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Do not make public accusations you can't back; in this space they can be dangerous. Route serious evidence to the Anti-Corruption Commission, the auditor, and trusted journalists and international networks, protect insiders and witnesses above all, and pair the exposure with the disciplined campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, safely. The documents build your proof; pinning down the displacement and the foreign backer aims it; the disciplined nonviolent movement is the engine; the EIA and the courts and the Human Rights Commission press the case; the foreign-backer campaign and the media raise the cost and protect your people. Together they multiply. One at a time, they stall — and remember to defend the win.

Early on (weeks 1–8): nail down the project, its footprint, its displacement, and its foreign backer; build a broad disciplined nonviolent front; request the EIA and clearance; photograph the baseline safely; get a lawyer and international allies.

In the thick of it (months–years): bring public interest litigation; involve the Human Rights Commission; target the foreign backer's exchange, financiers, and insurers; mobilise nonviolently; open the media front carefully.

The long haul (years): carry the litigation and the foreign campaign through; keep the disciplined movement alive; hold the line for a shelved project, a refused clearance, a defunded backer, delay, and a policy win — and guard the win against revival, protecting your people throughout.

FINAL ASSESSMENT

Stopping a destructive project in Bangladesh can be done — a disciplined, unified community stopped an open-pit coal mine at Phulbari and won a national ban on open-pit coal. Hold both truths, and never forget the cost: three young people were killed to win it, and GCM still lobbies to revive the mine. Bangladesh's tools are real, if constrained: an environmental clearance and EIA system; a strong tradition of public interest litigation; a National Human Rights Commission; and — distinctively — powerful pressure on the foreign-listed and foreign-financed companies behind big projects. And the constraints are heavy: weak enforcement, a development-first state, constrained civic space, and genuine, lethal danger in land and resource conflicts.

Here's the discipline that wins, and it stays nonviolent and safe. Nail down the displacement and the foreign backer — often the softest point. Build the broadest, most disciplined nonviolent front you can — that unity is your strength and your protection. Expose the EIA and press the Department of Environment; bring public interest litigation; involve the Human Rights Commission; and campaign against the foreign backer's exchange, financiers, and insurers, as the movement did against GCM. Protect your people above every other consideration, and be ready to defend a win the company may try to revive. Count a shelved project, a refused clearance, a defunded backer, delay, and a policy win as wins. That's what Phulbari did — the disciplined movement, the courts, and the pressure on the foreign backer together — and its cost is the reason your first duty is to protect one another. So can you — nonviolently, and safely.